

Digital Evidence and Admissibility Issues

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Admissibility of Digital Evidence

- Authentication
- Hearsay
- Best Evidence

Admissibility of Digital Evidence - Authenticity

ER 901

(a) General Provision. The requirement of authentication . . . is satisfied by evidence sufficient to support a finding that the matter in question is what its proponent claims.

Admissibility of Digital Evidence - Authenticity

- No Washington cases on authenticity re: digital evidence
- Standard for computer records same as for non-computer records
- Authenticity witness need not have special qualifications

Challenges to Admissibility of Digital Evidence - Authenticity

- Were records altered or damaged after being created?
- Was computer program that generated the records reliable?
- Was the author of computer-stored records who it purports to be?

Challenges to Admissibility of Digital Evidence - Authenticity

Were records altered or damaged after being created?

- Mere possibility of tampering irrelevant absent specific evidence of tampering

Challenges to Admissibility of Digital Evidence - Authenticity

Was computer program that generated the records reliable?

- Overcome challenge by showing
 - Sufficient facts to show trustworthiness
 - Users of program rely on it on regular basis
 - Similar to establishing “business record”
 - Defense is given opportunity to check

Challenges to Admissibility of Digital Evidence - Authenticity

Was the author of computer-stored records who it purports to be?

- For example, is defendant actually sender of email or chat?
- Usually done via circumstantial evidence
 - IP address
 - Evidence on seized computer
 - Defendant's unique access
 - Content analysis

Admissibility of Digital Evidence - Hearsay

Contrast

- Computer records contains only computer-generated data

with

- Computer records containing assertions of a person

Admissibility of Digital Evidence - Hearsay

**Ruling on Computer-generated Records
Should Be**

Not Hearsay

Admissibility of Digital Evidence-Hearsay Computer-generated Data

ER 801 DEFINITIONS

The following definitions apply under this article:

- (a) Statement. A "statement" is (1) an oral or written assertion or (2) nonverbal conduct of a **person**, if it is intended by the person as an assertion.
- (b) Declarant. A "declarant" is a **person** who makes a statement.

Admissibility of Digital Evidence-Hearsay Records contain Assertions of a Person

- Business Record “exception” most common way of complying with Evidence Rules
 - Computer hardware and software recognized as standard
 - Data were entered in regular course of business near the time of occurrence
 - Indicia of trustworthiness
 - Reliance
 - Accuracy of data entry
 - Prevention of loss or alteration to stored records
 - Integrity of data output

Admissibility of Digital Evidence - Best Evidence

ER 1001

(c) . . . If data are stored in a computer or similar device, any printout or other output readable by sight, shown to reflect the data accurately, is an "original."

Admissibility of Digital Evidence

- Email
- Email headers
- Logs
- Printouts
- Encase Report

Admissibility of Digital Evidence - Email

Authentication

- Is this really the email that was sent?
 - Will come up when the only evidence is a printout of the email
 - As with any document, need witness to identify the printout

Admissibility of Digital Evidence - Email

Authentication

- Did the alleged sender send the message?
 - Admission
 - Alleged sender's primary access to originating computer
 - Contents of message uniquely within alleged sender's knowledge
 - Content analysis (compare to known writings of alleged sender)
 - Alleged sender takes action consistent with contents of message

Admissibility of Digital Evidence - Email

Hearsay

- Is it hearsay?
 - Are you offering email to show truth of contents or fact of contents?
- Defendant's email?
 - If you've met authentication test, then this is a statement of a party opponent
- Defendant's reply to email
 - Has defendant adopted the truth of the email to which he replies (depends on reply)?

Admissibility of Digital Evidence

- Email Headers

Authentication

- In addition to other authentication requirements
 - Show routine reliance on information in headers
 - “Could have been spoofed” not sufficient without additional proof

Admissibility of Digital Evidence

- Email Headers

Hearsay

- Not hearsay because not the statement of a person
- Business Record (but may need witness)

Admissibility of Digital Evidence

- Logs

Authentication

- Will need witness to identify logs as having been produced by computer

Admissibility of Digital Evidence

- Logs

Hearsay

- Not hearsay because not the statement of a person
- Business Record (but may need witness - generally same as for authentication)

Admissibility of Digital Evidence - Printouts

Authentication

- Will need witness to identify printouts

Admissibility of Digital Evidence - Printouts

Hearsay

- Depends on whether printouts are computer-generated or contain declaration of a person
- If computer-generated
 - Not hearsay because not the statement of a person
 - Business Record (but may need witness - generally same as for authentication)

Admissibility of Digital Evidence - Encase Report

**[http://www.guidancesoftware.com/support/
downloads/legaljournal.pdf](http://www.guidancesoftware.com/support/downloads/legaljournal.pdf)**

Digital Evidence – Expert Testimony

- Do you need an expert?
 - Do you need an opinion?
 - Do you need a witness with specialized knowledge to explain?

Digital Evidence – Expert Testimony

- Consider two technical witnesses
 - A **fact witness** (the pictures were on the defendant's computer)
 - An **opinion witness** (the pictures were not on the defendant's computer by accident or mistake)

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